
MURABAHA FINANCING AGREEMENT
CONTRACT REF: MYB-ISL-2026-0341
DATE: 1 MARCH 2026

PARTIES

This Murabaha Financing Agreement ("Agreement") is entered into between:

Bank: Maybank Islamic Berhad, a licensed Islamic financial institution incorporated in Malaysia under the Companies Act 2016, having its registered office at Menara Maybank, 100 Jalan Tun Perak, 50050 Kuala Lumpur, Malaysia ("the Bank")

Customer: Nexus Resources Pte Ltd, a company incorporated under the laws of the Republic of Singapore, having its registered address at 80 Robinson Road, #20-01, Singapore 068898 ("the Customer")

CLAUSE 1 – ASSET DESCRIPTION

The Bank agrees to finance the acquisition of industrial machinery and related equipment ("the Asset") from suppliers to be identified and confirmed at a future date, subject to market availability and the Customer's operational requirements at the time of drawdown.

The Asset category includes, but is not limited to, heavy manufacturing equipment, processing units, and ancillary components as may be required by the Customer from time to time.

CLAUSE 2 – COST PRICE

The Cost Price of the Asset is estimated at RM 8,500,000 (Ringgit Malaysia Eight Million Five Hundred Thousand), subject to revision based on prevailing market rates and supplier quotations at the time of actual purchase.

Final Cost Price shall be confirmed upon execution of the Purchase Order and may be adjusted upward by up to 15% without further consent from the Customer.

CLAUSE 3 – PROFIT MARGIN

The Bank's profit margin on this transaction shall be calculated as follows: the prevailing 3-month Kuala Lumpur Interbank Offered Rate (KLIBOR) as published on the first business day of each quarter, plus a spread of 2.25% per annum, applied to the outstanding principal balance.

The profit rate shall be reviewed and adjusted quarterly to reflect changes in KLIBOR. In the event KLIBOR is discontinued, the rate shall be substituted with SOFR plus an adjustment spread as determined by the Bank at its sole discretion.

CLAUSE 4 – OWNERSHIP TRANSFER

Title and ownership of the Asset shall remain with the Bank until the Customer has paid in full all amounts outstanding under this Agreement, including any accrued late payment charges, compounded interest on arrears, and administrative fees as determined by the Bank from time to time.

The Bank reserves the right to withhold transfer of ownership in the event of any dispute, regardless of the payment status of the principal amount.

CLAUSE 5 – PAYMENT TERMS

The Contract Price (Cost Price plus Profit Margin) shall be repaid over 48 monthly installments. Installment amounts shall be recalculated at the start of each quarter to reflect the adjusted KLIBOR-linked profit rate.

The Bank may revise the installment schedule at any time upon 14 days' written notice to the Customer.

CLAUSE 6 – LATE PAYMENT

In the event the Customer fails to pay any installment on its due date, the Customer shall be liable to pay a late payment charge of 1.8% per month on the overdue amount. This charge shall compound monthly until the overdue amount is paid in full.

In addition, the Bank shall impose an administrative processing fee of RM 500 per week for each week the payment remains outstanding, which fee shall itself accrue interest at the same rate of 1.8% per month compounded.

CLAUSE 7 – IBRA (EARLY SETTLEMENT REBATE)

The Customer is contractually guaranteed a rebate (ibra) of 1.2% of the outstanding principal balance upon early settlement, payable within 7 days of full repayment. This ibra entitlement is irrevocable and shall not be contingent upon the Bank's approval or market conditions.

CLAUSE 8 – GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the Republic of Singapore. Any dispute arising from this Agreement shall be referred to the Singapore International Arbitration Centre (SIAC) for final and binding arbitration.

CLAUSE 9 – GUARANTEE

The obligations of the Customer under this Agreement shall be supported by a personal guarantee from all directors of the Customer company, jointly and severally.

SIGNED by the authorised representatives of both parties.

[END OF CONTRACT]

VIOLATION CHEAT SHEET (for demo reference – not part of contract):

- Clause 1: Asset undefined at signing = Gharar (BNM SPR 1, Sec 4.1)
- Clause 2: Cost price not fixed, can rise 15% = Gharar
- Clause 3: KLIBOR-linked floating profit = Riba (profit must be fixed)
- Clause 4: Ownership withheld beyond full payment = non-compliant transfer; "compounded interest on arrears" explicit Riba
- Clause 6: 1.8% compounding late charge = Riba (must be ta'widh)
Weekly admin fee accruing interest = double Riba
- Clause 7: Contractually guaranteed ibra = converts profit to interest
- Clause 8: Singapore law + SIAC = violates BNM jurisdiction requirement